

86

IOWA DEPARTMENT OF INSPECTIONS AND APPEALS
DIVISION OF APPEALS
Des Moines, Iowa

IN THE MATTER OF:

IOWA BOARD OF PSYCHOLOGY EXAMINERS
Plaintiff

DOCKET NO. 86HD-1

v.

EDMOND E. NADOLNY, Ph.D.
Respondant

AUG 6 1986

Chapter 140.212(14) and Chapter 140.212(8)(c)

STATEMENT OF THE CASE:

This matter came on for hearing at Des Moines, Iowa on July 11, 1986 before the Iowa Board of Psychology Examiners. The hearing was presided by Administrative Hearing Officer Daniel R. Render of the Iowa Department of Inspections and Appeals. The Board of Psychology Examiners was represented by Assistant Attorney General Rose A. Vasquez who offered as witnesses: D.A. (Complainant), T.A. and Mr. Jim Jones. Respondant was represented by Attorney David L. Brown who offered as witnesses: Mr. J. L. Agnew of Agnew, Tunink and Associates; Dr. Janet McDonough and Dr. Teresa Bylander. The purpose of the hearing was to determine if Respondant should continue to be licensed to practice as a psychologist in the State of Iowa due to alleged violations of Iowa Administrative Code chapter 140.212(14) and Chapter 140.212(8)(c). The issues dealt with (1) whether Respondant showed a personal interest of a client, both inside and outside the professional office while the individual was still a client actively involved in treatment and (2) whether the Respondant entered into unethical business practices consisting of falsifying clients' records.

FINDINGS OF FACT:

The Board of Psychology Examiners, having heard all the testimony and reviewing the exhibits presented at the hearing, finds that: Respondant maintained a dual relationship with D.A. The Respondant testified that he spoke regularly with the Complainant, by telephone after the Respondant considered the therapeutic relationship to have ended. The Board of Psychology Examiners finds that the nature of the Respondant's telephone conversations with Complainant was indicative of a therapeutic relationship. The Respondant does not deny that he had on one occasion met the Complainant for a luncheon engagement in a public restaurant and that he had met with the Complainant at his residence on one occasion. The Complainant,

testified that she never considered the therapeutic relationship to have ended. The Board finds the Complainant's testimony more credible than the Respondant's testimony.

The Board of Psychology Examiners finds that there is insufficient evidence presented at the hearing relative to the matter of D.A. to convince the Board that there existed deliberate falsification of records as alleged in Item #2 of the statement of charges. However, the Board has grave concerns regarding adequate recordkeeping notwithstanding Respondant's testimony that he had misplaced records due to moving from different business locations.

CONCLUSIONS OF LAW:

The applicable statutes are contained in Iowa Code Chapter 140.212(14) and 140.212(8)(c).

DECISION:

1. The Respondant's license to practice psychology in the State of Iowa is suspended thirty days after the date of this decision.
2. The Respondant's suspension shall continue until such time the Board of Psychology Examiners approves a probationary agreement for the Respondant with the following conditions:
 - A. The Respondant shall select a licensed psychologist (who is acceptable to the board) to serve as a supervisor during the probationary period.
 - B. The Respondant and supervising psychologist shall appear before the board at a regular meeting and present detailed plan (acceptable to the board) for rehabilitation of the Respondant's deficiencies.
 - C. The period of probation shall be for a period of no less than 24 months.
3. In the event the Respondant fails to meet the conditions of the probationary plan, the Respondant's license shall be suspended for 12 months.

DATED THIS 5TH DAY OF AUGUST, 1986.


GRATIA GILBERT, Ed.D.

Chairperson of Hearing Board

CC: Members of the Iowa Board of Psychology Examiners
David L. Brown, Attorney
Rose Vasquez, Assistant Attorney General

STATE OF IOWA
BEFORE THE BOARD OF PSYCHOLOGY EXAMINERS

IN THE MATTER OF THE LICENSE
TO PRACTICE AS A PSYCHOLOGIST
OF
Edmund E. Nadolny, Ph.D.,
RESPONDENT.

NOTICE OF HEARING
AND
STATEMENT OF CHARGES

TO: Edmund E. Nadolny, Ph.D.
4022 Fleur Drive
Des Moines, IA 50321

You are hereby notified that a disciplinary hearing has been scheduled concerning your license to practice as a psychologist in the State of Iowa. The hearing will begin at 8:00 a.m., Friday, July 11, 1986, in the first floor conference room of the Wallace State Office Building, Des Moines, Iowa. You should be present at the hearing. Section 17A.12(3) of the Iowa Code provides if a party fails to appear at the hearing, the hearing may proceed and a decision made in the absence of the party. You may be represented by legal counsel, present evidence, and cross-examine witnesses. The authority for the hearing is Sections 258A.3 and 258A.6 of the Iowa Code and Board Rules 140.201 through 140.212.

The hearing will concern whether or not disciplinary action should be taken concerning your license to practice as a psychologist, because of the following alleged violations:

1. By showing a personal interest which might impair one's professional judgment or increase the risk of client exploitation, you did see a client both inside and outside the professional office while the individual was still a client actively involved in treatment, in violation of 470 Iowa Administrative Code §140.212(14) which states: "psychologists are continually cognizant of their own needs and of their inherently powerful position vis a vis clients, in order to avoid exploiting their trust and dependency. Psychologists make every effort to avoid dual relationships with clients or relationships which might impair their professional judgment or increase the risk of client exploitation. Examples

of such dual relationships include treating employees, supervisors, close friends or relatives. Sexual intimacies with clients are unethical."

2. By indicating termination of treatment on the clinical records of D.A. while other factors, i.e. further billings, indicated termination had not, in fact, occurred in violation of 470 Iowa Administrative Code §140.212(8)(c) which prohibits: "unethical business practices, consisting of any of the following: ... falsifying client's records."

The hearing will be presided over by the Board and will be conducted for the admission of evidence by Mark Wheeler, Hearing Officer, Iowa State Department of Health, Lucas State Office Building, Des Moines, Iowa 50319 (telephone 515/281-5737). If you are represented by counsel, the counsel is requested to file an appearance with the Hearing Officer.

The attorney who will represent the State of Iowa is Rose A. Vasquez, Assistant Attorney General, Office of the Attorney General, Hoover Building, Des Moines, Iowa 50319 (telephone 515/281-6706 and 281-4068). Copies of all filings with the Board should be submitted to Ms. Vasquez.

Dated at Des Moines, Iowa this 30th day of May, 1986.

Gerald T. Jorgensen Ph.D. 5/1/86
Gerald T. Jorgensen, Ph.D., Chairperson
Board of Psychology Examiners and
Investigating Board Member in his
official capacity.

Restricted Certified Mail

I certify that a copy of the above
was deposited in the United States Mail,
Restricted Certified Mail Postage Prepaid,
on the 30th day of May, 1986.

Addressed as follows:

Edmund E. Nadolny, Ph.D.
4022 Fleur Drive
Des Moines, IA 50321

Cheryl Brinkman